



## 26.2 Step Mini Marathon

HEREDITARY CANCER AWARENESS · OMAHA, NEBRASKA

### PUBLIC TESTIMONY

# Testimony in Support of LB 338

Nebraska Legislature · Banking, Commerce and Insurance Committee

**Hearing date:** February 11, 2025 • **Presented by:** Denise Ibsen Cole, MPA, Founder

Good afternoon, Senator Jacobson and Members of the Banking, Commerce and Insurance Committee. My name is Denise Ibsen Cole, that is D-E-N-I-S-E I-B-S-E-N C-O-L-E, and I am here to testify in support of LB 338, as a high-risk individual, who would be directly impacted positively by this bill.

First, I would like to thank Senator Wordekemper for introducing LB 338, to protect the genetic information of individuals applying for life insurance, disability insurance, and long-term care insurance.

I am a BRCA1 positive individual, who had proactive preventative risk reduction surgeries at Nebraska Medicine, a board member of the Hereditary Cancer Foundation, a Policy Advocate volunteer for the national nonprofit Facing Hereditary Cancer Empowered (FORCE), a former education ambassador for Bright Pink, a tenured Boys Town employee, and Founder of the 26.2 Step Mini Marathon, which is focused on removing barriers for health care and genetic testing, and raising awareness of the importance for genetic testing for Nebraska citizens.

Over my decade of advocacy in this field, I have shared with people that making the decision to go through with genetic testing is a huge step. Often, people are healthy but have to make major health care decisions that could impact their health over their lifetime.

To find out that you have a high-risk genetic mutation for cancer can give you the ability to find the right health care providers to help you be proactive, and can lower your risk of some cancers, due to proactive/preventative stances. Because of the decisions I made with my healthcare providers at Nebraska Medicine, my own risks, due to BRCA1, for breast and ovarian cancers went from 86% and 64% to less than 2%, which is lower than the general population.

I witnessed my mother fight two difficult fights when it came to cancer. My own children were only 7 and 9 when I found out about my BRCA1 status, and I knew I would take whatever means necessary not to leave them orphans.

Individuals who are often thinking of genetic testing are often younger, in their 20-30's. In addition, just like myself, when facing these decisions, the person they would have turned to for guidance might have already passed away from cancer, and purchasing life insurance, disability insurance, and long-term care insurance is not often on their radar.

We know that proactive health measures are much more cost effective than waiting to fight a late-stage cancer. LB 338 gives people breathing room to make current health care decisions that can help them remain healthier longer, and to not avoid genetic testing for fear of discrimination.

I often share with others who might qualify for genetic testing that I cannot change the fact that they might have a genetic mutation, but I am hoping we can change the fact that they might end up with late-stage cancer, consequently, would be much more costly.

This bill helps remove one more barrier for people to take that initial step to get the needed genetic testing, without an added fear of having that genetic information used against them when applying for life insurance. I urge you to support LB 338 and I thank you for the opportunity to testify here today. I can answer any questions you may have at this time.

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### **Denise Ibsen Cole, MPA**

Founder, 26.2 Step Mini Marathon · Board Member, Hereditary Cancer Foundation

For more information, contact: **[contact@262minimarathon.com](mailto:contact@262minimarathon.com)**

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LB 338 (Nebraska 109th Legislature, 2025) would prohibit the use of genetic information in life, disability, and long-term care insurance. This is a reproduction of testimony delivered in person and submitted to the committee on February 11, 2025. Bill text and record: [nebraskalegislature.gov](https://nebraskalegislature.gov). Personal contact information has been replaced with the organization's contact address.